

26STCV20433 26STCV20433

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Case Number: 26STCV20433 Hearing Date: September 18, 2026 Dept: 20

Tentative Ruling

Judge Kevin C. Brazile

Department 20

Hearing Date: Friday, September 18, 2026

Case Name: Blaize v. Greyhound Lines, Inc., et al.

Case No.: 26STCV20433

Motion: Motion to Quash

Moving Party: Specially Appearing Defendant, City of Gadsen, et al.

Responding Party: Plaintiff Angol Blaize

Notice: OK

Ruling: The motion to quash service of the summons and complaint by specially appearing defendants City of Gadsen, Bobby Wooten, and Justin Free is GRANTED.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.

BACKGROUND

On June 2, 2026, Plaintiff Blaize Angol was a ticketed passenger on a Greyhound Lines, Inc. and/or FlixBus North America, Inc., and/or FlixBus, Inc. operated bus en route to California. While passing through Gadsden Alabama, the bus driver, Defendant "Carlos" stopped the bus upon discovering an alcohol container in the cabin. Defendant City of Gadsden Police officers Free and "Wotten" appeared at the request of Carlos. Although a fellow passenger admitted to responsibility for the alcohol container, Carlos still sought removal of Plaintiff from the bus. Facing arrest for trespass, Plaintiff exited the bus.

On June 29, 2026, Plaintiff, in pro per, filed a complaint for Breach of Contract (Common Carrier Duty), Fraudulent Misrepresentation, Intentional Infliction of Emotional Distress, Negligent Retention and Supervision, Trespass/Interference with Contractual Right to Transport/Trespass to Chattels/Unlawful Interference with Possessory Interest, and Violation of Rights Under Color of Law.

DISCUSSION

APPLICABLE LAW

"When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (Citation.) Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable. (Citation.)" (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 449; *Shisler v. Sanfer Sports Cars, Inc.* (2006) 146 Cal.App.4th 1254, 1258-59.)

"A California court may exercise judicial jurisdiction over nonresidents on any basis not inconsistent with the United States Constitution or the California Constitution. (Citations.) The general rule is that the forum state may not exercise jurisdiction over a nonresident unless his relationship to the state is such as to make the exercise of such jurisdiction reasonable. If a nonresident defendant's activities may be described as 'extensive or wide-ranging' (Citation) or 'substantial ... continuous and systematic' (Citation), there is a constitutionally sufficient relationship to warrant jurisdiction for all causes of action asserted against him. In such circumstances, it is not necessary that the specific cause of action alleged be connected with the defendant's business relationship to the forum.

"If, however, the defendant's activities in the forum are not so pervasive as to justify the exercise of general jurisdiction over him, then jurisdiction depends upon the quality and nature of his activity in the forum in relation to the particular cause of action. In such a situation, the cause of action must arise out of an act done or transaction consummated in the forum, or defendant must perform some other act by which he purposefully avails himself of the privilege of conducting activities in the forum, thereby invoking the benefits and protections of its laws. Thus, as the relationship of the defendant with the state seeking to exercise jurisdiction over him grows more tenuous, the scope of jurisdiction also retracts, and fairness is assured by limiting the circumstances under which the plaintiff can compel him to appear and defend. The crucial inquiry concerns the character of defendant's activity in the forum, whether the cause of action arises out of or has a substantial connection with that activity, and upon the balancing of the convenience of the parties and the interests of the state in assuming jurisdiction. (Citations.)"

(*Cornelison v. Chaney* (1976) 16 Cal.3d 143, 147–148.)

"Personal jurisdiction may be either general or specific. A nonresident defendant may be subject to the general jurisdiction of the forum if his or her contacts in the forum state are 'substantial ... continuous and systematic.' (Citations.) ...

"If the nonresident defendant does not have substantial and systematic contacts in the forum sufficient to establish general jurisdiction, he or she still may be subject to the specific jurisdiction of the forum, if the defendant has purposefully availed himself or herself of forum benefits (Citation), and the 'controversy is related to or "arises out of" a defendant's contacts with the forum.' (Citations.) ...

"The United States Supreme Court has described the forum contacts necessary to establish specific jurisdiction as involving variously a nonresident who has 'purposefully directed' his or her activities at forum residents (Citation), or who has 'purposefully derived benefit' from forum activities (Citation), or "'purposefully avail[ed himself or herself] of the privilege of conducting activities within the forum State, thus invoking the benefits and protections of its laws.'" (Citation). The court also has referred to the requisite forum contact as involving a nonresident defendant who "'deliberately" has engaged in significant activities with a State [citation] or has created 'continuing obligations' between himself and residents of the forum [citation]" (Citation), concluding that in such cases the defendant 'manifestly has availed himself of the privilege of conducting business [in the forum], and because his activities are shielded by "the benefits and protections" of the forum's laws it is presumptively not unreasonable to require him to submit to the burdens of litigation in that forum as well.' (Citation.)" (Vons Companies, Inc. v. Seabest Foods, Inc., supra, 14 Cal.4th at pp. 445–446; Muckle v. Sup. Ct. (2002) 102 Cal.App.4th 218, 227.)

General jurisdiction exists only in the defendant's state of incorporation or principal place of business. (Goodyear Dunlop Tires Operations, S.A. v. Brown (2011) 131 S.Ct. 2846, 2856-2857; Daimler AG v. Bauman (2014) 134 S.Ct. 746, 749-750; BNSF Ry. Co. v. Tyrrell (2017) 137 S.Ct. 1549, 1558.) The court noted that "in an 'exceptional case,' a corporate defendant's operations in another forum 'may be so substantial and of such a nature as to render the corporation at home in that State.'" (BNSF Ry. Co. v. Tyrrell, supra, 137 S.Ct. at p. 1558 (citing Daimler AG v. Bauman, supra, 134 S.Ct. at p. 761 (footnote 19).)

"In order for a court to exercise specific jurisdiction over a claim, there must be an 'affiliation between the forum and the underlying controversy, principally, [an] activity or an occurrence that takes place in the forum State.' [citation] When there is no such connection, specific jurisdiction is lacking regardless of the extent of a defendant's unconnected activities in the State. [citation] ('[E]ven regularly occurring sales of a product in a State do not justify the exercise of jurisdiction over a claim unrelated to those sales'.)" (Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County, supra, 137 S.Ct. 1773, 1781.)

APPLICATION TO FACTS

"Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party. ... 'Trial judges must acknowledge that in propria persona litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' (Citation). When one party has counsel and the other does not, the trial court 'should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.'" (Petrosyan v. Prince Corp. (2013) 223 Cal.App.4th 587, 594.)

Specially appearing Defendants City of Gadsen, Officer Bobby Wooten, and Officer Justin Free move to quash service of the summons and complaint on grounds of no basis of jurisdiction against the three specially appearing state of Alabama residents. Any and all conduct alleged occurred in the State of Alabama. The City of Gadsen and the two police officers maintain no basis of general or specific jurisdiction. [Affidavit of Bobby Wooten, Affidavit of Justin Free, Affidavit of Jack Lee Roberts, Jr., City Attorney.]

Plaintiff in opposition reiterates the factual basis and requests denial based on the burden of litigating the action in Alabama from Plaintiff's California residence. Plaintiff also maintains minimum contacts exist and a need to conduct discovery before any "final decision."

Defendants in reply reiterate the lack of any basis of jurisdiction. Litigation convenience is not a basis of jurisdiction. Any of the sought after discovery sought by Plaintiff will not lead to establishment of jurisdiction.

The complaint itself lacks any valid basis of jurisdiction. Any and all conduct occurred in the State of Alabama. Residency in California will not establish a basis of jurisdiction against any and all potential defendants.

Even assuming Plaintiff somehow establishes a valid basis for the filing of the complaint in Los Angeles California, the location of Plaintiff's residence, Specially Appearing Defendants establish the lack of any basis for the finding of general or specific jurisdiction. [Affidavits of Bobby Wooten, Justin Free, and Jack Lee Roberts, Jr.] The sought after discovery as identified by Plaintiff, including "Body-worn camera recordings; Patrol vehicle video and audio recordings: CAD reports and CAD history; Dispatch audio recordings; e MDT communications; Radio communications; Evidence preservation records, including the acknowledged 'Do Not Delete' designation; and Communications between the responding officers, dispatch personnel, supervisors, and Greyhound," in no way establishes any potential basis for establishing jurisdiction. "A trial court has the discretion to continue the hearing on a motion to quash service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on jurisdictional issues." (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1173 [90 Cal.Rptr.3d 527].) "In order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction." (Preciado v. Freightliner Custom Chassis Corp. (2023) 87 Cal.App.5th 964, 972.)

The court therefore grants the motion to quash.

CONCLUSION

Specially appearing Defendants City of Gadsen, Officer Bobby Wooten, and Officer Justin Free is GRANTED.

Specially Appearing Defendants to give notice.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pande